

53	Macedonio v Garibay 22-01267043	Motion for Leave to File Cross Complaint by DEFT and Trial Setting Conference The Motion for Leave to file a Cross-Complaint brought by Defendant Juan Fernando Garibay is GRANTED, pursuant to Code of Civil Procedure section 428.50, subdivision (c). Defendant shall separately file and serve the proposed Cross-Complaint, attached as Exhibit A to the Declaration of Nima Sadeghian, within 10-days. Defendant is granted leave to correct the caption of the proposed pleading before filing the cross-complaint. The names of the parties in the caption of the proposed pleading are not identified or mentioned in the allegations of the cross-complaint. The proposed cross-complaint asserts a claim for indemnity and contribution, relating to the motor vehicle accident which is the subject of the complaint. (§7 of Sadeghian Declaration and Exhibit A thereto, at ¶3-¶7.) "Cross-complaints for comparative equitable indemnity would appear virtually always transactionally related to the main action." (<i>Time for Living, Inc. v. Guy Hatfield Homes/ All American Development Co.</i> (1991) 230 Cal.App.3d 30, 38.) Courts "have repeatedly recognized that cross-complaints for comparative equitable indemnity are specifically allowed under section 428.10, subdivision (b) because of their transactional relationship to the complaint." (Ibid.) "An indemnity claim effectively seeks to apportion among the parties to the indemnity action the precise liability claimed by the plaintiff in the main action; therefore the indemnity claim of necessity arises out of the same occurrence or series of occurrences as asserted by the plaintiff." (Id. at p. 39.) Thus, the proposed Cross-Complaint "arises out of the same transaction, occurrence, or series of transactions or occurrences as the cause brought against Defendants." (Code Civ. Proc., § 428.10, subd. (b).) Additionally, given the close connection between the proposed claim and the claims within the Complaint, permitting the proposed Cross-Complaint will serve the interests of justice and judicial efficiency. (Code Civ. Proc., § 428.50, subd. (c).) The parties and/or their counsel shall appear for the trial setting status conference also scheduled on 4/18/25.
54	Davis v Mid Century Insurance Company 16-00877480	Motion to Compel Deposition by DEFT and OSC re Sanctions set by the Court. Defendants Mid-Century Insurance Company and Truck Insurance Exchange move to compel Plaintiff Jaimie Davis to appear for a further deposition. Defendant's motion is DENIED.